VENDOR SERVICE CONTRACT

Kestrel Gardens | Denver, CO

Owner	Kestrel Gardens Owner LLC
Contractor	Brightway Pest Control
Services	pest control
Property	Kestrel Gardens
Effective Date	March 22, 2022

1. Scope of Services. Contractor shall furnish all labor, materials and equipment necessary to perform pest control at Kestrel Gardens in accordance with the specifications attached hereto. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CO. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

2. Term and Termination. This Contract commences on the Effective Date for a term of 37 months and may be terminated by either party on thirty days' written notice. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CO. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs.

3. Compensation. Owner shall pay Contractor the monthly fee set forth in the Pricing Schedule within thirty days of receipt of an approved invoice. Time is of the essence with respect to each and every provision of this instrument. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

4. Insurance. Contractor shall maintain commercial general liability of $1,000,000, workers' compensation at statutory limits and automobile liability of $1,000,000. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Each party represents that it has full power and authority to enter into and perform its obligations hereunder.

5. Independent Contractor. Contractor is an independent contractor and not an employee, agent or partner of Owner or its property manager. Each party represents that it has full power and authority to enter into and perform its obligations hereunder. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

6. Standard of Performance. Services shall be performed in a professional and workmanlike manner by qualified personnel in compliance with applicable laws. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns.

7. Indemnification. Contractor shall indemnify, defend and hold harmless Owner and Manager from claims arising out of the performance of the services. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

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8. Service Levels. Contractor shall respond to emergency calls within four hours and routine requests within two business days. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

9. Scope of Services. Contractor shall furnish all labor, materials and equipment necessary to perform pest control at Kestrel Gardens in accordance with the specifications attached hereto. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought.

10. Term and Termination. This Contract commences on the Effective Date for a term of 31 months and may be terminated by either party on thirty days' written notice. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

11. Compensation. Owner shall pay Contractor the monthly fee set forth in the Pricing Schedule within thirty days of receipt of an approved invoice. If any term is held invalid or unenforceable, the remaining terms shall continue in full force and effect. Notwithstanding anything to the contrary contained herein, the parties agree that the foregoing shall be construed in accordance with the laws of the State of CO.

12. Insurance. Contractor shall maintain commercial general liability of $1,000,000, workers' compensation at statutory limits and automobile liability of $1,000,000. No waiver of any provision shall be effective unless in writing and signed by the party against whom such waiver is sought. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

13. Independent Contractor. Contractor is an independent contractor and not an employee, agent or partner of Owner or its property manager. This instrument shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. Time is of the essence with respect to each and every provision of this instrument.

14. Standard of Performance. Services shall be performed in a professional and workmanlike manner by qualified personnel in compliance with applicable laws. The prevailing party in any action to enforce the terms hereof shall be entitled to recover reasonable attorneys' fees and costs. All notices required or permitted hereunder shall be in writing and delivered by certified mail, nationally recognized overnight courier or electronic mail with confirmation of receipt.

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Signatures

IN WITNESS WHEREOF, the parties have executed this instrument as of the date first written above.

_____

Kestrel Gardens Owner LLC

By: Marcus Dixon Title: Authorized Signatory Date: 03/22/2022

_____

David Ito

By: Priya Coleman Title: Authorized Signatory Date: 03/22/2022

Exhibit A - Property

Kestrel Gardens, 6298 Orchard Way, Denver, CO 45101. Parcel containing approximately 11.45 acres, together with all improvements thereon.

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